

SCHEDULE FOR QBCC LEVEL 2 RENOVATION, EXTENSION AND REPAIR CONTRACT

This Contract is intended to be used for the renovation, extension, improvement or routine repair of a home (including a house, duplex or unit), or associated work (e.g. landscaping, building a pool or garage, etc.), where the Contract Price is \$20,000 or more. For smaller projects priced under \$20,000 the Level 1 version of this Contract should be used.

NOTE TO OWNER: To better understand your contractual rights and obligations, **BEFORE SIGNING carefully read this Schedule, the Consumer Building Guide and the General Conditions dated December 2020.**

NOTE TO CONTRACTOR: When completed, retain original and give 2 signed copies of this Schedule to the Owner.

The Owner

Owner's name/s: _____ Email: _____

Postal address: _____ Postcode: _____

Mobile phone: _____ Home phone: _____

The Owner ☐ IS ☐ IS NOT a Resident Owner. (Tick the appropriate box)

Owner has checked the Contractor's licence and history via QBCC's Online Licence Search:	Yes	No
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NOTE: An Owner is a Resident Owner if he/she intends to reside in the building where the Works are to be performed on, or within 6 months of, completion of the contracted work.

Owner's Authorised Representative (if any): _____

Postal address: _____ Postcode: _____

Mobile phone: _____ Email: _____

The Contractor

Contractor's name/s (must be as shown on licence): AusHail Pty Ltd

Contractor confirms: My licence is current, active and appropriate for this work:	Yes	No
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QBCC Licence Number: 15006096 ABN Number: 67 609 546 143

Business address: 2/10 Elliot St, Albion QLD Postcode: 4010

Mobile phone: (07) 3106 3456 Email: hello@aus hail.com.au

Contractor's Authorised Representative (if any): _____

QBCC Licence Number (if supervising): _____

Mobile phone: _____ Email: _____

ITEM	SUBJECT	NOTES	PARTICULARS
1	CONTRACT PRICE Condition 4 WARNING: The contract price is subject to change, either increasing or decreasing. The clauses that allow for changes and their effect are the following: Condition 20: where the owner owes the contractor interest on an overdue payment (see Condition 19 for payment terms), interest on the payment at a rate of six percent above the cash rate (as published by the Reserve Bank of Australia) may be applied, resulting in an increase in the contract price. Condition 24: where the contractor fails to achieve practical completion by the date for practical completion, liquidated damages may apply, resulting in a decrease in the contract price. Conditions 19 & 21: where a written variation is made to the works or to the manner of carrying out the works (see definition of "variation" in clause 38.1) the contract price may increase or decrease.	For information about Prime Cost (PC) Items and Provisional Sums (PS) see Condition 4 of the General Conditions. If the Contract includes such allowances, a PC/PS Schedule must be completed by the Contractor, signed by both parties and attached.	a. Fixed Price Component: \$ _____ (incl. GST) (includes deposit in Item 2) b. Prime Cost Items (if any): \$ _____ (incl. GST) c. Provisional Sums (if any): \$ _____ (incl. GST) CONTRACT PRICE a + b + c = \$ _____ (incl. GST)

ITEM	SUBJECT	NOTES	PARTICULARS
2	DEPOSIT Condition 19	The deposit must not exceed 5% of the Contract Price if Contract Price is \$20,000 or more.	Amount of deposit: \$ _____ (incl. GST) NOTE: The deposit <u>includes</u> the payment to QBCC for the Qld Home Warranty Scheme.
3	BRIEF DESCRIPTION OF THE WORKS	Insert a brief description of the contracted work and attach and refer to plans and specifications <i>e.g. construction of new home as per attached plans dated / / & specifications dated / /</i>	_____ _____ _____ Client requested additional scope:
4	SITE Condition 13		Site Address: _____ _____ Real Property Description: _____ Lot No: _____ Plan Type (e.g. RP/SP/BUP): _____ Plan No: _____ Local Authority: _____
5	STARTING DATE Conditions 1, 10 & 17	NOTE: The Contractor must ensure that the work under this Contract starts by the Starting Date. The Starting Date is the latest of: - the following agreed date _____ ; or 10 Business Days after the issue of approved plans by the Assessing Certifier; or 10 Business Days after the Owner has satisfied its financial obligations under Condition 5.1.	
6	COMPLETION PERIOD (including Construction Days and allowances for likely delays and non-working days) Conditions 22, 23 & 28	NOTE TO CONTRACTOR: You must state here any allowances (in days) you have made for delay factors which are reasonably likely to affect the time required to carry out the work. NOTE TO OWNER: The Contractor is not entitled to claim an extension of the Date for Practical Completion (Schedule Item 7) for a delay stated here (e.g. inclement weather) unless the number of days the Contractor is actually delayed is greater than the allowance stated here in Schedule Item 6B.	A. Construction Days The working days needed to construct the Works = _____ PLUS B. Allowances for likely delays: (i) Inclement weather allowance (Business Days) = _____ (ii) Other likely delays, if any (Business Days) = _____ Details of delay _____ PLUS C. Allowance for non-working days (incl. weekends, public holidays, Christmas shutdown, etc.) = _____ COMPLETION PERIOD (A+B+C): _____ Calendar days <i>(This total is the number of calendar days between the Starting Date and the Date for Practical Completion)</i>
7	DATE FOR PRACTICAL COMPLETION Conditions 22, 23 & 28	NOTE TO CONTRACTOR: Complete only one of the options in the 'Particulars' column (i.e. date or number of days) and delete the other.	Date: _____ OR Completion Period of _____ calendar days (see Schedule Item 6) from the Starting Date or the date on which the work under this Contract is commenced, whichever is the earlier .

ITEM	SUBJECT	NOTES	PARTICULARS
8	PROGRESS PAYMENTS Conditions 19 & 28	WARNING FOR CONTRACTOR: The QBCC Act requires that all progress payments must be directly related to the progress of the work at the Site and proportionate to the value of the work that relates to the claim (e.g. the total value of the progress claims plus the deposit cannot exceed 50% of the Contract Price until more than 50% of the work has been performed on Site). Breaches of this requirement attract heavy penalties. In presenting each progress claim you are warranting that the work on Site has reached the relevant stage set out below, and that the total amount claimed at any stage (including the deposit) is proportionate to the progress of the contracted work at the Site.	
	Description of Construction Stage when Progress Payment is due (Number of Stages will depend on the nature and value of the contracted work). If insufficient space below, attach further details of payments stages.	% of Contract Price	Amount (inc GST)
	1	%	\$
	2	%	\$
	3	%	\$
	4	%	\$
	5	%	\$
	6	%	\$
	7	%	\$
	8	%	\$
	Practical Completion Stage	%	\$
	TOTAL OF PROGRESS PAYMENTS = (will usually be 95% of Contract Price, excluding 5% deposit)	%	\$
	NOTE: The total of progress payments above, plus the deposit recorded in Schedule Item 2, must equal the total amount (100%) shown for the Contract Price in Schedule Item 1.		
	WARNING TO OWNER	Your cover under the Queensland Home Warranty Scheme may be reduced if you make payments greater than, or prior to, what the Contract requires.	
9	AMOUNT TO BE DEPOSITED IN SECURITY ACCOUNT (if relevant) Condition 6	NOTE: This Item is optional – it may be relevant where a loan is not required to finance the project.	\$ _____
10	LIQUIDATED DAMAGES Condition 24	NOTE TO OWNER AND CONTRACTOR: You must discuss whether, or what, liquidated damages (LDs) apply to this project and insert either an amount per day or 'NIL' if LDs do not apply. If this space is left blank, a default amount of \$50/day shall apply.	\$_____ per day for each calendar day of delay in achieving Practical Completion. NOTE TO OWNER REGARDING LIQUIDATED DAMAGES (if applicable): It is very important that you carefully consider and complete this section. The liquidated damages amount should be a genuine pre-estimate of the costs/losses the Owner will incur (if any) in the event the work under this Contract is not completed by the Date for Practical Completion (including any extra rental and storage costs, lost rent for rental properties, finance costs, etc. directly related to the delay in reaching Practical Completion).

ITEM	SUBJECT	NOTES	PARTICULARS
11	INTEREST RATE ON OVERDUE PAYMENTS Condition 20		Six (6)% per annum above the cash rate target, as published by the Reserve Bank of Australia (https://www.rba.gov.au/statistics/cash-rate/), at the date on which the payment is due.
12	FINANCE Conditions 1 & 5	WARNING TO OWNER: The Finance Date is the date by which the Owner must provide the Contractor with written evidence, satisfactory to the Contractor, of their capacity to pay the Contract Price (even if no loan is required). Consult your Lender before inserting a date. Delays in providing this evidence may delay the start of your project or lead to termination of the Contract.	The Contract is/IS NOT subject to Loan Approval. (Cross out whichever does not apply) Lender: <u>N/A</u> Amount of Loan: \$ _____ Finance Date: ____ / ____ / ____ (day) (month) (year) NOTE: If no date stated, Finance Date is 10 Business Days from date of this Contract.
13	PARTY RESPONSIBLE FOR OBTAINING BUILDING APPROVAL Conditions 9 & 10		_____ <i>(State whether the responsible party is Owner or Contractor - if nothing stated, the Contractor shall be responsible)</i>
14	PARTY RESPONSIBLE FOR COST OF EXTRA EXCAVATIONS AND FOUNDATIONS (if relevant) Condition 21	This item relates to responsibility for any extra excavations and foundations beyond what could reasonably be established from the Foundations Data.	_____ <i>(State whether the responsible party is Owner or Contractor)</i>
15	CONTRACT DOCUMENTS Conditions 4, 8 & 30	Any amendments or 'variations' to this Contract must be recorded in a Variation Document (such as QBCC Form 5) which then forms part of the Contract. Order of precedence for Contract documents (To be used to resolve any ambiguity or discrepancy in or between the documents): 1. Contract schedule 2. Special conditions (if any) 3. General conditions 4. Specifications 5. Plans (where required) 6. Other contract documents	PLANS (dated and attached) supplied by: Contractor/Owner on _____ N/A SPECIFICATIONS (dated and attached) supplied by: Contractor/Owner on _____ N/A PRIME COST ITEMS / PROVISIONAL SUMS Are Prime Cost Items included? ☐ Yes ☐ No Are Provisional Sums included? ☐ Yes ☐ No If YES to either question, the Contractor must complete and sign the Prime Cost Items and/or Provisional Sums Schedule/s and copy to Owner. SPECIAL CONDITIONS Are there any Special Conditions? ☐ Yes ☐ No If YES, ensure they are dated, signed by both parties and attached. NOTE: Foundations Data must be obtained if the contracted work requires the construction or alteration of, or may adversely affect, footings or a concrete slab for a building. Unless appropriate and reliable Foundation Data already exists, the Contractor is required to obtain appropriate Foundations Data before the Contract is signed and provide a copy to the Owner upon payment of the costs incurred in obtaining the data.

ITEM	SUBJECT	NOTES	PARTICULARS
16	SIGNATURES	NOTE: The Contractor must give the Owner: a. the QBCC Consumer Building Guide before the Owner signs the Contract; and b. a signed copy of the entire Contract, including plans and specifications, within 5 Business Days after the Contractor signs the Contract.	Signed by the Owner/s: Owner 1: _____ Owner 2 (if any): _____ In the presence of: _____ (Not Required) (signature of witness) *Do not sign until you have received the Consumer Building Guide, General Conditions, and plans and specifications, and foundations data (if required) has been obtained (by you or your Contractor). Signed by the Contractor: _____ Date: _____ In the presence of: _____ (Not Required) (signature of witness) Dated this: _____ day of _____ 20 ____

IMPORTANT NOTICE TO OWNER: 'COOLING-OFF' PERIOD

Under Schedule 1B of the QBCC Act **you may have the right to withdraw from this Contract during the cooling-off period of 5 Business Days commencing the day after you receive both a signed copy of this Contract and the QBCC Consumer Building Guide. If you wish to withdraw under the 'cooling-off' provisions you must give the Contractor a signed written notice stating that you withdraw from the Contract under section 35 of Schedule 1B of the QBCC Act (see Condition 2 of the General Conditions for more details).**

The Owner and the Contractor agree that the Contractor shall carry out the work described in this Contract for the Contract Price it provides and upon its terms.

This Contract includes:

- This Schedule for the General Conditions of QBCC Level 2 Renovation, Extension and Repair Contract, PC and PS Schedules (if relevant) and Forms 1 - 7 (if used), all dated July 2023;
- General Conditions of QBCC Level 2 Renovation, Extension and Repair Contract dated July 2023, and Special Conditions (if any); and
- Plans, specifications and any other contract documents described in Item 15 of this Contract Schedule.

CONSUMER BUILDING GUIDE

YOUR CONTRACTOR MUST GIVE YOU THIS GUIDE BEFORE YOU SIGN A CONTRACT PRICED AT OR OVER \$20,000

This guide has been developed by the QBCC in accordance with Schedule 1B of the *Queensland Building and Construction Commission Act 1991* ('the Act') to assist home owners undertaking domestic building work with a contract price of \$20,000 or more. **NOTE:** Unless otherwise stated, section references in this guide (e.g. s33) refer to provisions in Schedule 1B of the Act.

QBCC LICENCE

You should **only deal with a QBCC-licensed contractor**. If you engage an unlicensed contractor, your building work may not be covered under the Queensland Home Warranty Scheme. **Before committing, check the contractor's licence and history via the QBCC Online Licence Search or by calling the QBCC.**

WARNING – COST PLUS AND CONSTRUCTION MANAGEMENT CONTRACTS

QBCC strongly recommends home owners obtain formal legal advice before signing either of these types of contracts which increase your legal risk, reduce your Home Warranty Scheme protection and often result in disputes and cost overruns.

CONTRACT PRICE (s2)

For contracts priced at \$20,000 or more, the contract price, if fixed, must be shown prominently on the first page of the contract schedule. If the contract price is not fixed, the method for calculating it, including any allowances, must be stated in the contract schedule. Allowances (items or services for which the price is not fixed when the contract is signed) should be kept to a minimum as the final cost often exceeds the estimate in the contract. The contract must also contain a warning about any provisions that may alter the contract price. Refer to warning, page 1 of contract schedule.

COOLING-OFF PERIOD (ss35-39)

You may withdraw from the contract within 5 business days after the day you receive copies of both the signed contract (including any plans and specifications) and this guide. However, there are costs for home owners in withdrawing (generally \$100 plus any out-of-pocket expenses reasonably incurred by the contractor up to the time of withdrawal). You must advise the contractor in writing that you are withdrawing under the cooling-off provisions in section 35 of Schedule 1B of the QBCC Act.

QLD HOME WARRANTY SCHEME

Residential construction work valued at more than \$3,300 is covered by the Qld Home Warranty Scheme. The Scheme provides protection for home owners against non-completion, defective work and subsidence for up to 6 years from completion, provided a licensed contractor performs the work. The building contractor must collect the premium from the owner and pay it to the QBCC within 10 business days after the date the contract was entered into or before the contracted work is started (whichever is earlier). You should receive an email with a Notice of Cover and links to important information within 2 weeks of signing the contract.

DEPOSITS AND PROGRESS PAYMENTS (ss33,34)

The maximum deposit allowed (before work starts on site) is:

- 10% where the total contract price is less than \$20,000
- 5% where the price is \$20,000 or more
- 20% for a contract of any price where the value of the work to be performed off-site is more than 50% of the contract price.

After the deposit is paid, owners and contractors are free to choose the number and timing of progress payments (if any) for their project, provided the amount claimed is directly related to work progress on site and proportionate to (or less than) the value of the work that relates to the claim (e.g. You should not pay 50% until at least half of the work is completed on site).

COMMENCEMENT NOTICE (s16)

For contracts priced at \$20,000 or more, the contractor must give the owner a signed Commencement Notice within 10 business days of work commencing on site. The Notice must state the date work started on site and the Date for Practical Completion.

BUILDING APPROVALS AND INSPECTIONS (ss124A, 143A, 143B of the Building Act 1975)

Building approvals and inspections are the responsibility of a building certifier who may be engaged by you or, more commonly, your builder. Mandatory building inspections may be required at certain stages of construction. If your contractor has engaged a building certifier for certain certification functions, you can ask the certifier (via a notice given to your contractor) to perform additional certifying functions which will be at your expense and must be carried out by the certifier within agreed timeframes.

The contractor must give you copies of any certificates of inspection as soon as practicable after they receive them from the certifier. You can also ask the certifier, by written notice, for copies of any inspection documentation and the certifier must provide the documents within 5 business days. You can check a certifier's licence via QBCC's OnLine Licence Search.

For more information on additional inspections, go to www.business.qld.gov.au search 'Form 18 Notice to owner' and read the Appendix to this form. .

VARIATIONS (ss40,41)

Any change to the materials used or work to be performed under the contract is known as a 'variation'. Variations are frequently the cause of cost overruns and building disputes. **All variations must be agreed in writing by the home owner before the variation work commences** and any price increase due to the variation can not be required to be paid until the variation work is started.

DISPUTE PREVENTION

To reduce the risk of a dispute, carefully check and be sure you understand the contract, including any plans and specifications, before signing. Discuss any questions with your contractor and seek independent legal advice if you still have concerns. Once construction starts, maintain regular communication and, where possible, site inspections with your contractor and pay promptly when required under the contract.

DISPUTE RESOLUTION

If a dispute with your contractor occurs, firstly advise them in writing giving them a reasonable time to respond. If this doesn't resolve the problem, explore QBCC's free Early Dispute Resolution (EDR) service and your legal options. A QBCC letter advising the outcome of the QBCC dispute resolution process is required before you can commence a QCAT application. **QBCC recommends you obtain independent legal advice before terminating the contract.** **WARNING: Incorrect termination may have serious legal and financial consequences and reduce your protection under the Qld Home Warranty Scheme.**

EXTENSIONS OF TIME (EOTs) (s42)

The contract must state the Date for Practical Completion for your project, or how the date is to be determined (e.g. 180 days from commencement). The Act sets out circumstances in which a contractor may seek to extend this date (e.g. if you cause a delay, approve a variation to the contract which involves extra work, or the work is interrupted by more rain than could reasonably have been anticipated). The contractor must give you a written EOT claim which you should carefully consider (not unreasonably reject) and respond to promptly in writing. If you approve the claim, the Date for Practical Completion will be extended by the period claimed. If you do not approve the claim, the extension is deemed 'disputed'.

LIQUIDATED DAMAGES (LDs)

LDs are contractual payments to compensate a home owner for extra costs/losses they are likely to incur (e.g. extra rental costs) if the contractor fails to complete the work within the time allowed for in the contract (after allowing for legitimate extensions of time). Carefully consider what, if any, LD amount is appropriate for your project and ensure it is recorded in the contract.

PRACTICAL COMPLETION (PC) AND HANDOVER (See definitions of 'PC' & 'defects documents' - s1)

You are not required to pay the final contract payment until all of the contracted work has been completed in accordance with the contract including any plans and specifications, all legal requirements, and either without any defects or omissions, or with only minor defects or minor omissions that will not unreasonably affect occupation. If you believe there are any minor defects or minor omissions, the contractor must give you a 'defects document' (listing agreed and non-agreed matters). This document should be compiled by you and the contractor during a handover inspection. Check your contract to see if it imposes any extra requirements on the contractor for practical completion.

WARNING: Strict timeframes apply for notifying QBCC about defects. For more information please refer to the Regulatory Guide on the following QBCC website address qbcc.build/rectify-building-work

IMPLIED WARRANTIES (ss19-29)

Schedule 1B of the Act sets out statutory warranties which are deemed to be part of all regulated domestic building contracts, even if not stated in the contract. The warranty period is 6 years from completion, termination or cessation of the work for breaches resulting in structural defects; 1 year for all other breaches. Legal proceedings for any breach must be started within the warranty period or a further 6 months if the breach becomes apparent within the last 6 months of the warranty period.

FOR FURTHER INFORMATION

- Read the booklet, '*Domestic Building Contracts – General Information for owners and contractors*' on the QBCC website.
- Refer to the relevant legislation: Schedule 1B of the QBCC Act and ss124A, 143A and 143B of the *Building Act 1975*.

QUICK CHECKLIST (Ensure you are able to tick all relevant boxes below before signing the contract)

- ☐ I have read and **checked all contract documents**, including the contract schedule, general conditions and special conditions (if any) and any plans and specifications. **(DO NOT SIGN THE CONTRACT before receiving these documents)**
- ☐ I have **checked the building contractor's licence** and licence history on the QBCC Online Licence Search
- ☐ I note and **understand my cooling-off rights** (including how and when I may withdraw from the contract if I choose to)
- ☐ I have **checked the total contract price** (including what proportion is comprised of allowances) and I **understand the deposit and progress payments** set out in the contract schedule and when they must be paid
- ☐ I have **checked the start and finish dates and practical completion requirements** in the contract
- ☐ (If applicable) I have **discussed my questions/concerns about the contract with a practising solicitor**

OWNER'S ACKNOWLEDGEMENT

Complete and sign the section below to acknowledge that you have received this guide from your building contractor. Once signed, the building contractor will return a copy of this guide to you. You should refer to it from time to time.

NAME(S):

SIGNATURE(S):

DATE:

For further building information visit qbcc.qld.gov.au or call QBCC on 139 333.



AssessDirect Pty Ltd
EFT Declaration
AFSL 532361
8 Fox St, Albion QLD 4010
ABN 21 623 827 494

Claim Number

THE INSURED

The Insured

Are you registered for GST?

No ☐

Yes ☐

What is your ABN?

AssessDirect Security Account (ADS) Terms & Conditions- AssessDirect has an Australian Financial Services License (AFS License: 532361). Under the Australian Securities and Investment Commission (ASIC) guidelines, AD is authorised to provide claims handling and settlement services to insured retail and wholesale clients as a 'claimant intermediary'.

Under the AFSL, the settlement service AD provides is handling the cash settlement process. To achieve this AD has provided their customer with an Assess Direct Security (ADS) account. The ADS account is a security account that protects the builder and the client during build rectification works.

Under QBCC LEVEL 2 RENOVATION, EXTENSION AND REPAIR CONTRACT between the builder and client, the payment of build rectification works only gets released from ADS once the builder and client are satisfied with the build progression per the agreed contract (see 'QBCC LEVEL 2 DEC 2020 (FOR CONTRACTS \$20,000 +)' condition 6 pg.5 for further details on security accounts).

Under NSW HBCF contract between the builder and client, the payment of build rectification works only gets released from ADS account once the client has signed off the payment release with ADS. See HIA Clause 17. Progress payments. 17.3 The builder must give the owner a written claim for a progress payment for the completion of each stage.

The ADS account protects the financial security for the builder to get paid correctly and on time for their services whilst also protecting the client by ensuring they are satisfied with the standard of building work being completed before signing the release of payments.

PAYMENT DETAILS

Would you like funds to be paid directly into the security account below?

Yes ☒

No ☐

Bank Name

Commonwealth Bank

BSB

064 145

Account Name

AD Holdings

Account Number

1036 6416

DECLARATION

I / We declare that the information supplied on this form is true in every respect.

Signature of Insured 1

x

Date

Signature of Insured 2

x

Date



ASSESSDIRECT SECURITY ACCOUNT DEPOSIT FORM

I/We, the Depositor(s), whose details and signatures appear below, agree to the use of the AssessDirect Security account to secure funds for insurance approved works until works are complete and/or if a progress payment is required during works.

Deposit Amount: \$

DEPOSITER'S DETAILS

Name:

Postal Address:

Phone:

Email:

Signed:

Date:

BUILDER'S DETAILS

Site Manager:

Company Name:

ABN:

Phone:

Email:

Signed:

Date:

Site Address:



AssessDirect Security Account

Dear Sir/Madam,

We have received a Security Account – Deposit Form indicating you will be depositing monies directly into AssessDirects Security Account in accordance with the Security Account Agreement Conditions.

The bank account details for deposits are:

BANK	COMMONWEALTH BANK
BSB	064-145
ACCOUNT NUMBER	1036 6416
ACCOUNT NAME	AssessDirect

Please put your name as a Transaction Reference, so that we can identify your deposit.

Once funds have cleared, a confirmation receipt letter will be emailed to you as a depositor, with a copy to your builder, which will include the reference number for your file, as well as the receipt.

As per the Security Account Agreement Conditions, monies held in the Security Account will only be released by mutual consent (Release of Monies Form completed), or an Order of a Tribunal, Court or Direction of an Arbitrator.

If you have any queries at all, please don't hesitate to contact your Private Assessor directly.

Kind Regards,

Katie Clark
Company Director
www.assessdirect.com
p (07) 3062 8228
katie@assessdirect.com.au